

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-01

**Visual Comfort & Co., Inc.
v.
COSCO Shipping Lines Co., Ltd.**

RESPONDENT'S SURREPLY BRIEF

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COSCO Shipping Lines Co., Ltd. (“Respondent” or “COSCO”) hereby files its Surreply Brief (“Surreply”) to the Reply Brief and associated documents filed by Visual Comfort & Co., Inc. (“Complainant” or “VCC”) on December 20, 2024.

INTRODUCTION

As documented in Respondent’s concurrent Motion to Strike and for Leave to File a Surreply (“Surreply Motion”), VCC’s Reply Brief improperly includes: (1) new evidence and argument that may not be raised for the first time on reply – i.e., sandbagging, and (2) multiple statements of fact that are false and/or misleading. This Surreply addresses both types of impropriety -- i.e., argument and evidence that are too late, and statements that are simply untrue.

We expect that the Presiding Officer will grant the Surreply Motion as it relates to category 1 and will strike the unauthorized supplemental Appendix (“Reply Appendix” or “CRX”) submitted by Complainant concurrently with its Reply Brief, as well as portions of the Reply Brief referring to or dependent on the Reply Appendix. Accordingly we address categories 1 and 2 separately. That way, if the Presiding Officer strikes the new argument and evidence, as he should, there will be no need for him to address the portion of the Surreply addressed to sandbagging (Part I), and he may focus solely on Part II, addressing Complainant’s false and misleading statements.

ARGUMENT

I. VCC’s New Evidence and Arguments

As detailed in the Surreply Motion, Complainant in its Reply Brief and unauthorized Reply Appendix adds “evidence” and argument that was required to be submitted, if at all, in connection with its Opening Brief and the single Appendix authorized by the Procedural Schedule. For that

reason, both the Reply Appendix and the new arguments should be stricken. We show below, however, that even if the new evidence/new arguments are considered for what they are worth, they are not worth much, and do not bring Complainant any nearer to meeting its burden of proof.

A. Complainant's New, But False, Claim That it Entered COSCO Invoices Into the Record

As Complainant accurately recognizes, Respondent argued in its Opposition Brief that “VCC has not *entered into the record* a single invoice from COSCO to RIM in which COSCO imposed charges against RIM for shipments covered by the Complaint.” Reply Brief at 1 (emphasis added). Instead of addressing what evidence Complainant had “**entered into the record,**” however, Complainant uses the old trick of answering a question totally different from the one posed, discussing *not what was entered into the record*, but instead *what was produced in discovery*. In this respect, Complainant says: “VCC *did produce invoices* from COSCO to RIM explicitly showing charges at issue, which RIM then passed through to VCC. (CRX 1-31).” *Id.* (emphasis added). Thus, Complainant dishonestly elides the fact that, no matter what it may have produced privately to Respondent, *it did not enter the newly attached material into the record*. The record does not extend to every piece of paper disclosed in discovery, *but only* documents submitted for the record by the parties as part of their authorized appendices. Complainant’s attempted linguistical legerdemain cannot cover up the indisputable fact that Complainant *did not* attach these documents to the only Appendix it was permitted, and hence such invoices *were not* in the record until Complainant’s recent attempt to improperly shoehorn them in.

Even if the new documents could be considered, however, they include only five COSCO invoices to RIM and do not satisfy Complainant’s burden of proof. Indeed, they mostly prove that at least some of the charges at issue were issued by ocean common carriers *other than COSCO*.

The new exhibits (CRX 1-31) include copies of five RIM invoices to VCC. RIM invoices may show what RIM charged VCC, but they prove nothing about what COSCO did or did not charge RIM.

Indeed, as noted above, the RIM invoices prove that at least some of the charges for which VCC seeks reparations were not issued by COSCO. The RIM invoices refer to the following ocean bill of lading numbers of other ocean carriers.

1. CMDUSHZ5273058 (a CMA CGM bill of lading)
2. CMDUSHZ5298525 (a CMA CGM bill of lading)
3. OOLU2699696520 (an OOCL bill of lading)
4. OOLU2712733590 (an OOCL bill of lading)
5. CMDUGHC0237475 (a CMA CGM bill of lading)

The fact that these bills of lading were issued by CMA CGM and OOCL means that *those carriers, not COSCO*, were the actual ocean common carriers for those shipments. Complainant seems to think that the mere fact that the cargo was carried on vessels operated by COSCO makes COSCO the ocean common carrier for all of the shipments thereon. But as the FMC well knows, that is not true. All major carriers, including, CMA CGM, COSCO, and OOCL, are party to at least one alliance and often other vessel sharing agreements. Under those vessel sharing agreements, each member receives space on other member's vessels. Thus, for example, a typical sailing of one member's vessel under the OCEAN Alliance Agreement (FMC Agreement No. 012426), to which COSCO, CMA, and OOCL belong, will always contain cargo for which other alliance members are the carriers. Indeed, a typical voyage is likely to include cargo from four or more different ocean common carriers that have space on the vessel.

Complainant has cited nothing, and indeed there is nothing, to suggest that the vessel operator is responsible to a shipper whose cargo is being transported pursuant to a bill of lading issued by a different carrier that has chartered space on the operator's vessel. None of the RIM invoices for these containers where other ocean carriers issued the bill of lading refer to charges invoiced by COSCO to RIM. Accordingly, all claims involving bills of lading issued by carriers other than COSCO must be dismissed as have been filed against the wrong carrier.

CRX 1-31 does include five invoices for detention issued by COSCO to RIM (CRX6, CRX16, CRX18, CRX19-20, CRX21-22). Those invoices were not submitted for the record in connection with VCC's Opening Brief, so their belated appearance is irrelevant. But even if the improperly and belatedly introduced invoices were to be considered, they fail to make out a claim, because they do not prove the essential elements of a claim under 46 U.S.C. 41102(c).

As explained in the Opposition Brief:

“For a complainant to make out a statutory violation for unreasonable detention/demurrage charges under existing legal standards, a complainant must show, for each specific shipment and for each day for which a charge was assessed, that: (1) the complainant (or its agent) could not pick up or return the container on the specific date for reasons outside of their control; and (2) the charge assessed for that specific day could not have served to incentivize cargo movement.” Opp. Br. at 18. *See TCW, Inc. v. Evergreen Line Joint Service Agreement*, 3 FMC 2d 1 (S.O. 2021), *aff'd* 5 FMC 2d 192 (FMC 2022), vacated and remanded by *Evergreen Shipping Agency (America) Corp. v. FMC*, 106 F.4th 1113 (D.C. Cir. 2024) (hereinafter “TCW”).

The COSCO invoices submitted by Complainant prove nothing more than the mere fact that COSCO invoiced RIM for detention in those specific instances. None of the invoices say, much less prove, either that RIM was unable to return the empty container, or that the failure to

make timely return was due to factors outside RIM's control.¹ Nor do any of them demonstrate that assessment of detention to RIM ***could not*** incentivize earlier return, a showing Complainant is required to make under the D.C. Circuit decision in *TCW*.

We now address the five individual COSCO invoices contained in the Reply Appendix.

1. COSCO Invoice HOU00284955 (CX6)

COSCO invoice HOU00284955 (CRX6) is an invoice for daily Detention issued to "Party" RIM Logistics, Ltd. on October 11, 2022. It indicates a bill of lading reference number 6341377043, for container number OOLU9364572, which was discharged at Charleston. The invoice shows that the container was made available by COSCO to RIM on September 26, 2022, and that free time started on the same day. Free time expired on October 5, 2022, giving RIM eight "free days" to remove the container from the terminal in Charleston, take it to its warehouse, strip the cargo from the container, and return the container to COSCO. Nevertheless, RIM did not return the container until October 11, 2022. This resulted in detention charges to RIM of six billable days, in the amount of \$1,025.00.

Nothing in this invoice, or in any of the other documents submitted by VCC in its Reply Appendix, demonstrates that RIM was unable to return the container on any of the six days for which detention was charged; nor does it show that any obstacles to return were beyond RIM's control. They certainly do not show that the detention invoice for those days could not provide an incentive to return the containers on time.

¹ Complainant tries to address this essential element via a twisted form of *res ipsa loquitur*, effectively asserting that the fact that RIM ***did not*** return the container on specific dates when it was required to do so means that it ***could not*** return them. This is obviously silly as a matter of logic. For all the record shows, RIM, or VCC, might have been using the container for other purposes, such as storing cargo to avoid warehousing costs, which VCC was known to do.

2. COSCO Invoice HOU00280888 (CRX16)

COSCO Invoice HOU00280888 (CRX16) is an invoice for daily Detention issued to “Party” RIM Logistics, Ltd. on October 11, 2022. It indicates a bill of lading reference number 6341377040 for container number CSNU669825, which was discharged at Charleston. The invoice shows that the container was made available by COSCO to RIM on September 27, 2022 and that free time started on the same day. Free time expired on October 6, 2022, giving RIM eight “free days” to remove the container from the terminal in Charleston, take it to its warehouse, strip the cargo from the container, and return the container to COSCO. Nevertheless, RIM did not return the container until October 7, 2022. This resulted in a detention charge to RIM of one billable day, in the amount of \$125.00.

As with the other invoices, Invoice HOU00280888 does not contain any evidence: (i) that RIM could not return the container on time, for reasons outside RIM’s control, or (ii) that the charges could not have had an incentivizing effect.

3. COSCO Invoice HO00279998 (CRX18)

COSCO Invoice HOU00279998 (CRX18) is an invoice for daily Detention issued to “Party” RIM Logistics, Ltd. on October 11, 2022. It indicates a bill of lading reference number 6341688500 for container number OOLU9289519, which discharged at Charleston. The invoice shows that the container was made available by COSCO to RIM on September 26, 2022 and that free time started on the same day. Free time expired on October 5, 2022, giving RIM eight “free days” to remove the container from the terminal in Charleston, take it to its warehouse, strip the cargo from the container, and return the container to COSCO. Nevertheless, RIM did not return the container until October 7, 2022. This resulted in a detention charge to RIM of two billable days, in the amount of \$305.00.

4. COSCO Invoice HOU00276516 (CRX19-CRX20)

COSCO Invoice HOU00276516 (CRX19-CRX20) is an invoice for daily Detention issued to “Party” RIM Logistics, Ltd. on October 28, 2022. It indicates a bill of lading reference number 6377753780 for two containers:

- (a) Container number ??HU5739707² was discharged at New York. This container was made available by COSCO to RIM on August 31, 2022 and free time started on the same day. The eight days of free time expired on September 12, 2022, but the container was not returned until September 14, 2022 resulting in a detention charge for two billable days in the amount of \$305.00.
- (b) Container number ??HU9150132 was discharged at New York. This container was made available by COSCO to VCC on August 30, 2022 and free time started on the same day. The eight days of free time expired on September 9, 2022, but the container was not returned until September 12, resulting in a detention charge for three billable days in the amount of \$485.00.

5. COSCO Invoice HOU00274088 (CRX21-CRX22)

COSCO Invoice HOU00274088 (CRX21-CRX22) is an invoice for daily Detention issued to “Party” RIM Logistics, Ltd. on September 27, 2022. It indicates a bill of lading reference number 6336867810 for container number ??NU7787109, which was discharged at New York. The invoice shows that the container was made available by COSCO to RIM on August 31, 2022 and that free time started on the same day. Free time expired on September 6, 2022, giving RIM eight “free days” to remove the container from the terminal in New York, take it to its warehouse,

² “??” indicates illegible characters.

strip the cargo from the container, and return the container to COSCO. Nevertheless, RIM did not return the container until September 12, 2022. This resulted in a detention charge to RIM of six billable days, in the amount of \$805.00.

In sum, for the only five COSCO invoices that VCC has attempted to put in the record, even if improperly and belatedly, COSCO charged RIM detention for 20 billable days, in a total amount of \$3,050.00. But as previously explained, none of those invoices show that: (i) RIM was unable to return the container on any of the days charged, (ii) that such unproven inability was for reasons outside RIM's control, or (iii) that the charges could not have incentivized earlier return.

B. VCC's New Assertion of "Proof" that RIM "Passed Through" COSCO Charges

VCC newly argues in its Reply Brief (at 2) that VCC offered "proof" that RIM passed through charges from COSCO, without any markup. In so claiming, it cites solely to the newly submitted RIM invoices (CRX1-31). As shown above, none of the RIM invoices refers at all to COSCO's charges, so no such inference can be made. Thus, even apart from being improper sandbagging, those invoices prove nothing.

C. VCC's New (and Novel) Assertion that a Single Invoice Is Sufficient to Prove Facts Regarding 419 Shipments

VCC for the first time makes the truly surprising argument that a single invoice (or small sample) is sufficient to prove that all of the shipments covered by the Complaint involved charges from COSCO. Reply Brief at 8. Merely to state that proposition is to refute it. As already proven, COSCO was not even the ocean common carrier for all of the shipments. At least some shipments were carried by other carriers, such as CMA CGM and OOCL, pursuant to their own bills of lading. Absent a specific invoice from COSCO for each alleged charges, there is simply no way to even speculate, much less conclude, that any charge was a COSCO charge. And again, the belatedly-submitted invoices in CX1-31 do not show any of the essential elements of a claim under 46 U.S.C.

41102(c) – they say nothing about whether RIM could or could not return the empty container on any particular day, whether such inability was for reasons beyond RIM’s control, or whether such charges were incapable of incentivizing earlier returns.

Nevertheless, VCC incomprehensibly now asserts that five COSCO invoices for detention prove not only that COSCO charged RIM for all of the detention charges it lists in its Appendix, but also that COSCO charged RIM for all the storage and yard storage charges that appear on that list, even though none of the five invoices refer to any such charges. That is pure fantasy.

D. VCC’s New Argument About the Incentive Principle

Contrary to VCC’s assertion (Reply Brief at 9), COSCO has not said that consignees such as RIM “can be incentivized to move its cargo even when it is not possible to do so.” What COSCO has said is that during times of congestion, without a demurrage or detention charges, consignees are less incentivized to move their cargo, thus creating more congestion. It is the D.C. Circuit that said that charging for days when a consignee cannot return a container (e.g., closed days) may incentivize such consignees to return the container before the closure. For that reason, an analysis must be done on a shipment-by-shipment basis to make any sense at all. Opposition Brief at 17, 20-21.

E. VCC’s New Argument About Reparations

VCC says that it is not “seeking reparations for containers delayed by customs holds.” Reply Brief at 7. But how is the Presiding Officer (or COSCO) to determine *why* any of the containers incurred late fees or why VCC is seeking reparations at all? VCC has never said why any specific container was not picked up or returned on a timely basis. Nor has VCC documented its claim that specific containers could not be removed or returned within free time, much less that the reasons for RIM’s delay were beyond its control. As addressed further in Part II, regarding

untruths, the only reason mentioned by VCC is that RIM was late because of “COSCO’s business decision to have its vessels depart without fully loading empty containers.” Reply Brief at 7. Apart from the obvious deficiency that VCC does not identify specific COSCO vessels that it claims departed without fully loading empty containers, so cannot correlate such instances with specific charges, the claim itself is pure testimony of counsel, as VCC cites to nothing in support. In any event, it is impossible to see that the departure of the vessel has any effect on free time, which is set at eight days from availability, with no reference to vessel departure date (which is set by pre-determined schedule).

F. VCC’s New Arguments About COSCO’s Invoicing Practices

VCC newly alleges that “COSCO would hold the cargo hostage until the fees were paid regardless of whether they were reasonable...” Reply Brief at 12. This is again pure testimony of counsel, made without reference to any factual support. VCC does not even assert, much less prove, that COSCO held VCC cargo hostage for any specific shipment or shipments. It is simply an *ad hominem* attack of counsel without any basis in evidence.³ Making this charge without evidence is simply reckless lawyering.

G. New Assertions About the McCown Report

The VCC Reply Appendix includes a Declaration of John McCown (VCC’s purported Expert Witness) seeking to explain matters that Complainant refused to explain before. CRX 39-41. This belated attempt to resuscitate Mr. McCown’s everchanging report comes way too late. And even if considered, it merely proves that Mr. McCown’s Report and testimony are totally unreliable, as well as being irrelevant to the framework created by the Commission and courts.

³ Accordingly, the holding in *Adenariwo* has no application here, where there is nothing more than counsel’s testimony about a non-existent hostage.

Mr. McCown makes two startling admissions that doom his Report and testimony. First, he admits that he simply copied and pasted portions of his Report from another case. Nor did he correct the erroneous numbers in his first amended Report, served on June 14, 2024. Indeed, he saw absolutely nothing amiss until Respondents called the numbers to his attention. If not for that, VCC would have submitted these erroneous numbers to the Commission under oath. This lack of care and competence is by itself disqualifying.

Second, Mr. McCown admits that he did not check the numbers and their sources himself (obviously), but instead simply adopted whatever VCC provided him with respect to the shipments and charges involved. That is simply remarkable, meaning he did nothing more about calculating reparations than act as a human adding machine. He did not review the invoices COSCO allegedly sent to RIM; he did not know that CMA CGM, OOCL, and perhaps others, were the ocean carriers for at least some of the shipments at issue, *not COSCO*, and he had no idea whether or why RIM “could” not (really did not) return specific containers on specific dates, much less that those failures were for reasons outside RIM’s control. Nor of course, does he address the requirement added by the D.C. Circuit to show that the charge could not incentivize earlier return.

In sum, Mr. McCown’s “expert” testimony is more the work of a below-average journeyman and meets nobody’s standards for a qualified expert.

Mr. McCown seeks to minimize his sloppiness and ineptitude by saying he did not change his conclusions. Reply Brief at 33; CRX40. That is self-obviously untrue. In the first and second versions of the McCown Report, he concluded that VCC was entitled to an award of \$1,532,098 in reparations from COSCO, relating to 539 charges on VCC’s total shipments of 1,577 shipments. McCown Report of June 14, 2024 at 29. In the Third version, he concluded that COSCO owed VCC \$1,065,606 relating to 419 charges on VCC’s total shipments of 1,944 shipments. In the

current Fourth version, he concludes that COSCO owes VCC \$1,016,349 relating to 419 charges on yet a different statement of VCC's total shipments, this time 1,844 shipments. If those are not "conclusions," we don't know what are. As to Mr. McCown's other conclusions, we have already demonstrated in the Opp. Br. that they do not address, much less meet, the essential elements prescribed by the Commission and the courts. Opposition Brief at 50-52.

Complainant also now makes a great deal of the fact that it offered to continue the deposition of Mr. McCown. Reply Brief at 36 ("During Mr. McCown's deposition, the parties scheduled his deposition to continue on October 4. (CRX 40)."). Continuing Mr. McCown's deposition would not have remedied the prejudice Respondent had already suffered, for many reasons, including Complainant's refusal to provide documents necessary to such further deposition. Nor would a deposition on October 4 have allowed Respondent to question Mr. McCown about his Fourth Edition, set out in in Complainant's original Appendix, as that version was not served until October 18.

II. Reply to Some of VCC's False and/or Misleading Statements

Respondent demonstrated in its Opposition Brief that Complainant's Opening Brief was rife with untruths, half-truths, and misleading assertions. Its Reply Brief fares even worse, if possible, with infidelity to the facts becoming rampant. Indeed, some of Complainant's false statements are so blatant as to suggest, if not prove, that Complainant made the statement with knowledge of its falsity or at least reckless disregard for the truth. There are so many false statements that we cannot address them all, but instead focus on the whoppers, which themselves constitute a formidable list and start on page one of the Reply Brief.

A. False Statements Relating to Discovery

Complainant says (at p. 1) that COSCO did not produce any invoices from COSCO to RIM. That is plainly false, as Complainant must know, because COSCO explicitly produced invoices to Complainant in Respondent's production dated September 18, 2024 (COSCO_001861-001863), which included both invoices from COSCO to RIM and a credit note from COSCO to RIM. Despite this indisputable fact, VCC repeats the canard on page two.

Still on page one, Complainant asserts that it did not have access to invoices COSCO may have sent to RIM.⁴ That is equally as false as Complainant's assertions about COSCO. Any invoice or communication that COSCO may have sent to RIM or any communication that RIM may have sent to COSCO, is obviously in the possession of RIM, VCC's assignor. VCC necessarily had access to anything RIM possessed not just due to their relationship and the amenability of RIM to third party discovery, but also because RIM was contractually bound under the Assignment Agreement to provide VCC with any documents VCC wanted.⁵

⁴ On page 4, VCC asserts that the invoices it included in its Reply Appendix were "produced by VCC." Reply Brief at 4. This is clearly untrue; as the bates stamps indicate, these documents were produced by **RIM** to both VCC and COSCO.

⁵ Thus, the Assignment Agreement to which RIM and VCC are parties states:

"Continuing Cooperation: If at any time after the date hereof, either Party reasonably determines that additional action (including, without limitation, the execution and delivery of further documents and other instruments) is necessary to carry out the purpose of this Agreement, such party will so notify the other Party, who agrees to take the requested further action. Thereafter, the Assignor shall execute, acknowledge, and deliver all such further assignments, sales, transfers, conveyances, warranties, licenses, applications, notices and assumptions, and such other instruments, and shall take or cause to be taken such further actions, as may be reasonably necessary or appropriate to make effective the transactions contemplated by this Agreement." CX 1240 (emphasis added).

Yet again on page 1, Complainant reiterates its false claim that “COSCO has utterly failed to search for and produce relevant documents.” We will not linger on this point, as it is already addressed in Respondent’s Opposition Brief. In short, COSCO searched in accordance with the ESI protocol agreed to by VCC, used the very search terms that VCC requested, and provided every single document identified by those searches to VCC, except for two privileged documents. VCC’s insinuations otherwise would be libelous if said outside the protected forum of an administrative adjudication.

Finally on page two, VCC makes up out of false cloth the assertion that:

“COSCO has knowingly failed to produce relevant documents – including its service contracts with RIM, RIM’s communications contesting COSCO’s charges, and invoices issued by COSCO to RIM.

This assertion consists multiple untruths. First, as already said – RIM *did not have* a service contract with COSCO covering these shipments. If such a service contract had existed, COSCO would have produced it, and VCC could also have gotten it from RIM. Instead, as also said, all of the shipments covered by the Complaint moved pursuant to service contracts between COSCO and *various shippers in Asia*. VCC itself must surely know this, and certainly RIM does, so it is puzzling that VCC’s counsel claims not to know.

VCC’s counsel alleges (without citation to evidence) that “In each invoice for detention and demurrage charges to VCC, RIM provided scans of the invoices it received from COSCO.” Reply Brief at 2. This of course is impossible, as some of the shipments were not even carried by COSCO, but rather, moved under bills of lading issued by CMA CGM, OOCL, and perhaps other carriers. And why then, has VCC put in evidence (too late) only five invoices from COSCO to RIM? Because those are the only invoices in evidence (if they are not stricken, as they should be),

VCC could, at most, recover for those five invoices, but only if they proved their case under the *TCW* standard, which they have not.

Second, COSCO did in fact produce invoices to RIM, as proven above. It also produced communications between COSCO and RIM, such as arrival notices and a credit note, as well as emails. And again, COSCO searched using the very terms that VCC requested and provided all non-confidential results to VCC. The facts that COSCO found no other documents and that VCC did not get any such documents from RIM would seem to demonstrate that neither COSCO nor RIM had such documents, because they are not real, but rather a fabrication by VCC.

On page 4, VCC reiterates its false statements about the discovery conducted by COSCO, saying:

“COSCO’s document collection process has been in doubt throughout this proceeding because it was lead and managed by COSCO employees rather than third party e-discovery professionals. VCC, on the other hand, retained a third-party document collection vendor and timely produced thousands of responsive documents. Contrast that to COSCO, which did not even begin to collect documents until after VCC’s first Motion to Compel.”

VCC’s claim that COSCO did not even begin to collect documents until after VCC’s first Motion to Compel is pure fiction.⁶ Complainant’s First Motion to Compel was filed on **May 31**, 2024. Complainant dishonestly fails to reveal that COSCO had already ***produced*** documents to VCC on **May 30**, 2024. VCC also elides the fact that Respondent also produced documents to VCC immediately thereafter, on June 3, 2024. Obviously, COSCO had been collecting both sets of documents well before the May 31 motion.

⁶ And again, VCC is fortunate that statements in litigation are protected from claims of libel.

As to the tired comparison between COSCO's search and that of VCC's alleged third-party vendor, we have already shown that it is a false comparison. We have no idea what searches the third-party vendor did, or what ESI Protocol it used, but either the vendor is incompetent or was given useless search terms by VCC (without any input from Respondent). As previously explained, what the third-party vendor produced was 99 percent an improper dump of clearly non-responsive documents, yet VCC entirely failed to produce multiple responsive documents, which Respondent only discovered when it deposed VCC officers, and they repeatedly referred to documents that were obviously responsive but not caught by the unidentified vendor, and which VCC had not produced.⁷

COSCO, by contrast, conducted searches using its own IT professionals, following an ESI Protocol agreed to by Complainant, using search terms *specifically devised* by Complainant. And every non-privileged document resulting from the search was produced to Complainant. In sum, COSCO conducted a much better search than VCC's vaunted outside professionals.

On page 13, VCC falsely reiterates the claim that "COSCO has refused to conduct searches for communications with NVOCCs, including RIM, in all relevant custodians" As to RIM, and as explained in the Opposition Brief, however, COSCO did exactly that, searching every single custodian likely to have responsive documents and providing all of the non-privileged documents to VCC. As to NVOCC's other than RIM, Complainant's suggestion is passing strange. Complainant made no claim about any NVOCC other than RIM in its May 31, 2024 Motion to Compel. And in her July 17, 2024 Order, the former Presiding Officer specifically declined to order production of documents relating to possible customers other than RIM.

⁷ This suggests either that the vendor did a poor job, or that VCC deliberately withheld responsive documents (or both).

VCC nevertheless asserts, “COSCO’s repeated reliance on factual misrepresentation is a critical issue throughout this case, which is COSCO’s failure to produce relevant and responsive documents, including communications between COSCO and RIM and COSCO’s invoices to RIM. (CRX1-31 (VCC00058–88)).” Reply Brief at 8. But contrary to this assertion, COSCO produced communications between COSCO and RIM (COSCO_000101-COSCO_001860), invoices COSCO issued to RIM (COSCO_001861- COSCO_001863), and ocean bills of lading issued to other shippers where RIM was consignee (COSCO_001864-COSCO_002089). COSCO has not withheld relevant documents; how VCC chose to argue its position and what information it chose to introduce was its choice. The failure of VCC’s chosen litigation strategy cannot now be laid at COSCO’s feet.

VCC likewise asserts it has been “deprived of the opportunity to obtain communications between COSCO and its customers...” Reply Br. at 19. But, as the prior Presiding Officer ruled, the only relevant communications would have been between *COSCO and RIM* with respect to VCC’s shipments. Partial Order on Motions to Compel (ALJ, July 17, 2024). COSCO has in fact produced all such documents that it found using VCC’s search terms.

In the same vein, VCC falsely asserts (at p. 13) that COSCO refused to search for discussions of its detention and demurrage policies. But VCC never asked for such documents and clearly such documents were neither subject to VCC’s May 31, 2024 Motion to Compel nor addressed in the ALJ’s Order on motions to compel.⁸

⁸ Complainant’s self-created schedule (on page 14) is also false and misleading. VCC’s new summaries of what it requested are far from reality. Complainant has plainly created a fake summary in a vain attempt to avoid disclosing that it never requested such documents, and certainly they were not ordered to be produced by Judge Crovella.

Again, as Complainant repeatedly fails to disclose, COSCO and VCC agreed on an ESI Protocol, and ***Complainant dictated the search terms***, for a search to meet the Presiding Officer's Order compelling further production. COSCO carried out that search as requested, thereby fully satisfying the Judge's Order. And yet again, COSCO provided VCC with every single document identified using VCC's search, except for two privileged documents.⁹

On page 15, Complainant says that COSCO counsel declined to agree to an extension of time. Even apart from the fact that Complainant does not need Respondent's consent to file a motion for additional time, the statement and quotation are misleading because Complainant omits the fact that this statement was in response to an email from counsel for Complainant on the same date saying, "we are not requesting any extension of the schedule unless COSCO requires an extension to produce a prepared witness and to produce the relevant documents." As COSCO had no need of an extension to respond to Complainant's untimely supplemental requests, it did not seek one.

Likewise, on Page 15 (and again on pages 16; 17, n. 7; 19, n. 8; and 20), Complainant makes the misleading claim that COSCO refused to search custodians James Houghtalin and Paulina Wang. But COSCO objected to those searches for legitimate reasons, previously acknowledged by VCC. Ms. Wang was not an employee during the relevant period, so was very unlikely to have relevant documents. Mr. Houghtalin is a COSCO lawyer, so most, if not all,

⁹ At footnote 5 on page 15, Complainant asserts that "it is now clear that the shaperdiem account would have responsive documents." That is another untruth, as Complainant should know. As established in the Opposition Brief, Shaperdiem is not a traditional email address and thus, ***does not contain any documents***, but rather, is simply a distribution list that forwards complaints to the appropriate accounts. COSCO searched ***all of the accounts to which complaints might be forwarded from Shaperdiem***, and produced all results to VCC, including whatever Shaperdiem had received or distributed.

documents from his account would be privileged. Given that the request was made out of time and discovery was about to end, it did not seem reasonable to spend another three months searching for documents and carefully reviewing the results (if any) for privilege.

In any event, Complainant has waived its newly created cavils about Ms. Wang and Mr. Houghtalin. When Respondent objected to searching these custodians, Complainant *said nothing* in response. And Complainant did not mention either to Ms. Wang or Mr. Houghtalin in its October 16 Second Motion to Compel. Its current quibbles are simply part of its desperate attempt to evade its failure to make a case on the merits by asking the Presiding Officer to tilt the playing field.

On page 16, Complainant says that COSCO did not search the custodians listed in Shaperdiem.¹⁰ That is misleading, at best. As previously explained, COSCO searched all of the locations in its system where complaints about detention and demurrage might be found, including what was received by Shaperdiem and what Shaperdiem distributed.¹¹ This was explained in the Opposition Brief, so there is no excuse for Complainant's false statement.

Still on page 16, Complainant makes the internally inconsistent, and untrue, claims that "COSCO has not produced a single email in this litigation, other than COSCO_000001-18, which pertain to an unrelated customer. COSCO refused to produce correspondence with its customers until it was ordered to do so on July 29." As Complainant itself admits, COSCO did produce correspondence with its customers. And contrary to its false claim, these documents were produced

¹⁰ VCC's similar claim, that COSCO did not search "perdiem_CDS@coscon.com" and "perdiem@cosco-usa.com" or the email addresses contained in Shapediem is simply false. Any of those addresses that might have held responsive documents were in fact searched.

¹¹ COSCO of course did not search custodians that would not have had responsive documents. All of these disputes involved shipments to North America, so there was no point to Respondent searching, for example, custodians that dealt with disputes regarding shipments from Asia to South America or Australia.

to VCC not only before the July 29 Order, but before the May 31 Motion to Compel – on May 30, 2024.¹²

On page 17, VCC misstates the burden of proof when it falsely claims that Complainant’s argument is not supported by the record. It then tells a huge fib, asserting that “by counsel’s own explanation, its searches of the U.S. customer complaint portals would not have captured emails sent to shaperdiem@coscon.com that did not receive responses.” Either VCC’s counsel needs new reading glasses, or it is deliberately falsifying what Respondent said. COSCO’s search of various portals would indeed have captured every relevant document.

At page 18, Complainant cavils that COSCO “explicitly represented, at least twice, that it had searched [the Shaperdiem] email address.” Indeed, COSCO did so, at least in effect. As previously explained, COSCO searched every custodian reasonably likely to have information for documents responsive to VCC’s dictated search teams. Anything responsive that came into or went out of Shaperdiem was necessarily captured by that process. VCC’s assumption that the Commission will accept a falsehood because it is repeated *ad infinitum*, is, we hope, totally untrue.

As part of its uninformed rant about discovery, Complainant asserts (at page 21, n.11) that Respondent should have been able to conduct a search with zero hits faster than the approximately one month it took COSCO. Any experienced litigator should know that this is simply absurd. The

¹² Complainant also quibbles on page 16 that COSCO did not finish document production until the day before the first deposition. But this is the reddest of herrings. Complainant did not complain at the time; nor did it ask for a postponement. Furthermore the documents provided on October 8 were all sea waybills, totally irrelevant to the deposition, and which Complainant has not included in either its authorized Appendix or in its unauthorized Reply Appendix.

Complainant likewise makes the misleading assertion that COSCO “did not disclose to VCC that it had not searched multiple relevant custodians until October 9.” But as discussed above, COSCO did search all of the custodians requested by Complainant, representing all of the potential custodians believed likely to have responsive documents, and when COSCO searched the other custodians mentioned by VCC, it found nothing responsive.

number of hits bears no relationship to the time it takes to conduct the searches, especially when the requestor has demanded that multiple variables be searched in multiple combinations.

Complainant's assertions about the need for ESI Protocols to be iterative are simply inconsistent with the FMC framework. Schedules are required to end discovery within 150 days of the Answer. And although ALJs may extend deadlines, they are typically reluctant to do so, and especially not to grant the kind of open-ended, repeat extensions suggested by Complainant. Unlike the Commission, courts do not have deadlines by which discovery must be completed and Initial Decisions issued. Complainant's effort to turn administrative proceedings into many-year lawsuits is simply inconsistent with the Commission's framework.¹³

On page 22, Complainant misstates the Opposition by falsely asserting that "COSCO claims that VCC must somehow prove that the communications it requests exist despite COSCO's failure to search for them." A simple reading of COSCO's argument is sufficient to show that Complainant is simply inventing once again.

VCC asserts that "all disputes COSCO raised with VCC about its document productions have been resolved." Reply Brief at 14 n.4. This is also untrue. Just because Respondent has chosen to focus on the merits, rather than pursue issues surrounding VCC's deficient production, does not alter the fact that what VCC produced in response to the July 29 Order was totally insufficient to meet that Order (including new responses to requests for admission and interrogatories that were no better than the first set the Presiding Officer required to be replaced).

¹³ The Commission's Rules state that they shall be interpreted/applied so as "to secure the just, speedy, and inexpensive determination of every proceeding." 46 C.F.R. 502.1 (sometimes referred to as the prime directive). Complainant would apparently change that to very lengthy and exceedingly expensive.

B. False or Misleading Statements About the Relationship Between COSCO and RIM

On page two, Complainant misstates Respondent's assertion as to why RIM was not a COSCO customer for these shipments. What COSCO actually said, as opposed to how it was mischaracterized without quotation by Complainant, was:

“Not one of the shipments covered by the Complaint moved pursuant to a service contract between RIM and COSCO. [RPFF245- RPFF249]. Nor did RIM act as shipper of these shipments under a COSCO contract or tariff. [RPFF18, RPFF173, RPFF231, RPFF236, RPFF238, RPFF249]. In fact, all of the shipments designated by VCC as within the scope of its Complaint moved under service contracts between COSCO and various other shippers located in Asia (which were also named as “shipper” on the COSCO bills of lading). [RPFF236]”.

This statement is 100 percent accurate. Instead of addressing the statement actually made by COSCO, Complainant tosses out the false red herring that “COSCO's argument rests entirely on the incorrect premise that COSCO did not invoice RIM for detention and demurrage.” Reply Brief at 2. But the quote above says nothing regarding detention or demurrage – those words are never uttered therein. Nor is that claim made by COSCO on either of the pages incorrectly cited by VCC. At both places, all COSCO states is that the shipment was *not made* pursuant to a service contract between COSCO and RIM (but rather a contract between COSCO and one of various shippers in Asia), and that RIM was not listed as the shipper in the bill of lading for such shipments. VCC cannot ethically deny this, as it is shown by the bills of lading (sea waybills) that COSCO produced to VCC.

On page three, Complainant asserts without citation that RIM has standing to seek reparations from COSCO because RIM was in some sense a “customer” of COSCO. But as Complainant has acknowledged by getting an assignment from RIM, only a “direct purchaser” has standing to seek reparations. VCC bears the burden of proof to demonstrate that RIM was a “direct

purchaser,” from COSCO, but as shown in the Opposition Brief, VCC has submitted no evidence – as opposed to lawyer’s testimony – that RIM actually paid COSCO for any of the charges, much less all of them.¹⁴

Complainant’s feigned misunderstanding of the burden of proof is perfectly captured in its claim (still on page 3) that “COSCO’s repeated claims that the shipments at issue were not made pursuant to service contracts with RIM are also unsupported.” It is *not COSCO’s burden* to prove how the shipments at issue moved. Rather, that is plainly part of *VCC’s burden of proof*. In any event, the fact that COSCO did not find, and hence did not produce in discovery, a service contract with RIM and that RIM likewise did not provide such a contract to VCC is strong evidence that no such contract existed except in VCC’s imagination.¹⁵

VCC assertion that “no NVOCC enters into a contract without being fully covered with lower rates from its ocean carrier (typically in the 10-20% range) may be generally true (Reply Brief at 4 (citing the McCown Report)), but it is incontrovertible that RIM did not get its freight rates from COSCO because it did not contract for ocean transportation with COSCO – it contracted

¹⁴ As discussed in more detail below, both the Commission and the courts have held that evidence of an invoice is no evidence that such invoice was paid. *Government of the Territory of Guam v. Sea-Land Service, Inc.*, Docket No. 89-26, 29 S.R.R. 894 (ALJ, Admin. Final 2002) (“there can be no presumption that bills are paid and that documentary evidence to demonstrate payment is required.”)

¹⁵ The fact that COSCO may have billed RIM for some charges, raised by Complainant here and on page 9, says nothing about this issue. Many of COSCO’s (and other ocean common carrier’s) service contracts with Asian shippers provide for the “collect” payment of some or all charges by the consignee or another party. This does not change the fact that the consignee is not a party to the service contract or the “shipper” on the bill of lading. And again, VCC seeks to reverse the burden of proof, arguing (on page 9) that “COSCO has provided no evidence . . . to support this claim that no contract or customer relationship existed between COSCO and RIM.” It is of course VCC’s obligation to prove the nature of the relationship between COSCO and RIM, not COSCO’s obligation to disprove it. The Commission itself has recognized that ocean carriers *may* bill consignees, even if they are not the carrier’s actual customer. *See* Demurrage and Detention Billing Requirements, 89 Fed. Reg. 14330 (Feb. 26, 2024) (amending 46 C.F.R. § 541.4).

with other NVOCCs who in turn had contracted with COSCO. That is plain from the hundreds of ocean bills of lading that COSCO produced to VCC. Mr. McCown simply did not understand RIM's relationship with the NVOCCs from which RIM contracted for service, perhaps because he lacks relevant, current experience with the industry. That RIM may have led VCC to believe that it had a direct relationship with COSCO is no fault of COSCO.

Stunningly, VCC also falsely states that "COSCO would have a contractual relationship with a party sending it more than \$10 million in one year. CX 464-5 (O'Toole Dep. at 114:11-116:11)." This misleading assertion may best be described as sleazy. There is no evidence in the record of what RIM paid COSCO. In fact, the deposition testimony to which VCC cites was about what *VCC paid to RIM*, not what *RIM paid COSCO*.

Contrary to VCC's outrageous assertion that COSCO "attempt to use unnamed 'Asian shippers' to shield itself from the hard fact that RIM, on behalf of VCC, shipped its cargo into the United States via COSCO's vessels..." (Reply Brief at 5), COSCO has indeed named the NVOCC shippers at origin; their names all appear clearly on the COSCO ocean bills of lading (sea waybills) that COSCO produced to VCC. The terms of those ocean bills of lading were established between the shipper at origin (an NVOCC) and RIM, the consignee, where RIM agreed to pay demurrage and detention (if incurred at destination) to COSCO. That is all.

On page 5, VCC claims that RIM was acting as an NVOCC in connection with these shipments. That is entirely false – an NVOCC is defined by the Shipping Act as

"a *common carrier* that — (A) does not operate the vessels by which the ocean transportation is provided; and (B) is a shipper in its relationship with an ocean common carrier." 46 U.S.C. 40102(17) (emphasis added).

Thus, to be acting as an NVOCC for a particular shipment, an entity must be acting as a “common carrier” for that shipment. The term “common carrier” is defined by the Shipping Act as an entity that, *inter alia*, “assumes responsibility for the transportation from the port or point of receipt to the port or point of destination.” 46 U.S.C. 40102(7)(ii).

Complainant, which bears the burden of proof, has produced nothing to demonstrate that RIM assumed responsibility for the transportation from origin to destination. This is normally proven by putting into evidence the actual House bill of lading (“HBL”) that the purported NVOCC issued to its shipper. No such HBLs are in evidence here (nor were any produced by VCC or RIM in discovery). Proof of responsibility is thus entirely lacking.

VCC suggests that the issuance of a House Bill of Lading may be proven by its own creation – a list of shipments that purports to state the HBL numbers. But this self-generated list is pure hearsay and there is no basis to assume it is reliable or accurate, or that it reflects a real bill of lading.¹⁶ To prove that there was a House Bill of Lading, it would be necessary to produce the HBL, which both VCC and RIM must have, if they exist. Respondent asked *both* VCC and RIM for any House Bills of Lading, but neither produced any such documents.¹⁷ As a matter of logic, this indicates either that no HBLs exist, or that both VCC and RIM have engaged in substantial discovery abuse, which by itself warrants dismissal of the Complaint.

C. False and/or Misleading Statements About COSCO Charges

Perhaps VCC’s biggest untruth is its assertion, at page 6, that COSCO assesses storage charges. VCC bases this false claim on the allegation that the terms storage and yard storage are

¹⁶ In our experience, ocean transportation intermediaries may track shipments using memo bills of lading – that is, an internal reference number that does not denote an actual, issued, bill of lading.

¹⁷ VCC does not contest the indisputable fact that neither it nor RIM produced any HBLs.

used interchangeably. That may (or may not) be true, but it is entirely irrelevant. As established in the Opposition Brief, COSCO **does not** charge *either* storage or yard storage. COSCO's charges, as exemplified in the five COSCO invoices included in the Reply Appendix, are for detention, not storage. As Mr. Takase explained, storage or yard storage is a charge assessed by motor carriers and sometimes terminals, not ocean carriers. And when VCC counsel asked whether COSCO assessed anything like storage, Mr. Takase corrected her that the charge COSCO might issue would be "demurrage," not "storage."¹⁸ Again, it is VCC's burden to prove that COSCO assessed "storage" charges, as opposed to detention charges, but it has put forth nothing other than Counsel's non-evidentiary *ipse dixits*.

On page seven, Complainant concocts the unsupported and unsupportable prevarication that "each of VCC's charges at issue [has] been directly caused by COSCO's business decision to have its vessels depart without fully loading empty containers" Complainant offers nothing to support this false claim. This sort of lawyering by innuendo is intolerable and should be addressed by the Presiding Officer.

Complainant resorts to a half-truth, and a mischaracterization of the Opposition Brief, on page 8, where it says (rather ineloquently):

"Standing is another straw COSCO attempts to grasp in its desperation to defend this case . . . COSCO claims: "Any claims for reparations VCC may hold are only those assigned to VCC by RIM. Fatally to VCC's claim, however, VCC has not demonstrated that RIM was a direct purchaser from COSCO for any of the shipments covered by the Complaint. . . .

VCC has demonstrated that RIM was a direct purchaser from COSCO for the shipments covered by this proceeding. CRX 1-31 (VCC000058-88) show

¹⁸ Storage and demurrage are totally different types of charges. Demurrage, charged by the ocean carrier, is a charge for use of the *ocean carrier's* Storage, by contrast, is a charge issued by rail and motor carriers and sometimes terminals, for use of real property – i.e., space on the motor carrier's or (rail or marine) terminal's lot.

irrefutably that COSCO directly invoiced RIM for detention and demurrage applied to VCC's containers that are at issue in this proceeding, and that RIM then invoiced VCC for the same."

What COSCO actually argued was that VCC had not "demonstrated" that RIM was a direct purchaser. That is a burden of proof argument, based on what VCC had submitted for the record at that time (obviously not including the documents impermissibly added by VCC in its Reply Appendix). Without that new evidence, there is no possible argument that VCC has met its burden of proof.

As established in the Motion filed concurrently herewith, this new evidence is contrary to both the governing procedural Order of the former ALJ and the universal proscription against "sandbagging." But even if this new evidence was considered not too late for consideration, it is still too little, because it does not show anything like what Complainant claims it proves.

As discussed above, the new documents significantly address shipments where COSCO was *not* the ocean common carrier. And the five COSCO invoices in the Reply Appendix prove nothing except about those specific shipments. And, as also shown there, they offer no evidence either that RIM was unable to pick up or return the container for reasons outside RIM's control *or* that the charges could not have incentivized earlier return.

Shockingly, despite our demonstration in the Opposition Brief (at pp. 62-63) that, in order to claim reparations, VCC must provide **proof** that RIM paid COSCO for each of the charges,¹⁹ VCC has remained struthiously mum on the matter. It thus effectively concedes the point, which means that all claims where VCC has not submitted valid proof of payment must be dismissed (i.e., all of them).

On page 14 (and elsewhere) of the Reply Brief, Complainant makes the entirely false claim that COSCO “refused to negotiate with its customers about the charges.” Complainant certainly knows better than that. In COSCO’s very first document production, on May 30, 2024, COSCO produced to VCC multiple emails showing COSCO negotiating such charges with customers (indeed waiving them). COSCO would certainly have negotiated over any charges to RIM, had it been asked. But it never was. Indeed, the Complaint in this proceeding makes clear that

¹⁹ See, e.g., *Government of the Territory of Guam v. Sea-Land Service, Inc.*, Docket No. 89-26, 29 S.R.R. 894 (ALJ, Admin. Final 2002) (holding that “there can be no presumption that bills are paid and that documentary evidence to demonstrate payment is required” and dismissing all claims for which complainant had not submitted a canceled check); *Cotton Import & Export Co. v. Sea-Land Service, Inc.*, 20 S.R.R. 260 (FMC 1980) (complainant could not claim reparations unless it presented both the front and back of checks showing payment); *Snyder General Corp. v. South African Marine Corp.*, 25 S.R.R. 373 (I.D., Admin. Final 1983) (partially illegible checks insufficient to document payment for purposes of reparations); *Mine Safety Appliance Co. v. Springbok Shipping Co.*, 20 S.R.R. 410, 413 (S.O. 1980) (documents showing that freight bill was presented for payment but not that payment was made held insufficient); *Refinement Int’l Co. v. Eastbourne*, 815 F. Supp. 738, 744 n.11 (S.D.N.Y. 1993) (check duplicates not showing cancellation inadequate to show payment), *aff’d*, 25 F.3d 105 (2d Cir. 1994); *Ruberto v. Commissioner of Internal Revenue*, 774 F.2d 61, 64 (2nd Cir. 1985) (where matching of fronts and backs was unclear, claimant would need to produce original checks to prove payment).

Complainant deliberately eschewed use of COSCO's informally FMC-approved process for addressing complaints. Complaint, paragraph 27, n. 1.²⁰

D. False and/or Misleading Statements about the McCown Report

VCC blithely asserts that it fully complied with expert discovery and disclosure obligations. Reply Brief at 32-33. VCC attempts to minimize its failures in this respect by saying there was a “discrepancy between the numbers include in the references to VCC00005 in Mr. McCown’s report and the numbers in that VCC00005.” Reply Brief at 33. Whatever this is intended to mean, it is false and misleading to characterize the repetitive changes in citation to which underlying data Mr. McCown said he used as a mere “discrepancy.”²¹ Although VCC asserts that two of the “corrections” to McCown’s report(s) were in response to requests made by COSCO (Reply Brief at 32), this does not remotely remedy VCC’s failure to timely and accurately provide the documentation and information on which its expert report was based.

COSCO should not have had to ask for these corrections at all. COSCO was prejudiced both by its need to request corrections and by the delay caused by VCC’s failure to provide an accurate report in the first place. COSCO’s Rebuttal Expert did not have the time allotted in the procedural schedule to draft his report. This was clearly prejudicial to COSCO.

²⁰ Ironically, Complainant’s purported reason for not seeking to negotiate was that COSCO required some evidence to waive or modify detention charges. *Id.* Instead of doing that, VCC chose to file a formal complaint with the Commission, which has even more rigorous requirements regarding proof. Although nobody can say for sure what would have happened had RIM/VCC requested to negotiate, we suggest from experience that it would likely have resolved VCC’s concerns (at least in part) faster, and without the massive amount of legal expense.

²¹ VCC’s Reply Brief intimates McCown himself discovered his mistake at deposition on September 26, 2024; this is not correct. The “mistake” was identified by COSCO’s Rebuttal Expert, Mr. Hackett, in his report served on July 22, 2024. It was apparently only during deposition that counsel for VCC understood this error.

VCC asserts that all the data used by Mr. McCown came from VCC00005. Reply Brief at 37 (citing CRX41(McCown Declaration)). But this is directly contrary to Mr. McCown's own Report, which asserts that Mr. McCown relied on two different spreadsheets, namely VCGPOR REPORT – YEAR 2021, VCGPOR -22 Report (appearing in native Excel format in Respondent's Exhibits 15 and 16). (CX548 (McCown Report at 23, FN 26 and FN27))

Conclusion

For the reasons set forth above, as well as in Respondent's Opposition Brief, all Counts of the Complaint fail. Accordingly, the Complaint must be dismissed.

Dated: December 30, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on the 30th day of December 2024, a true and correct copies of the foregoing **Respondent's Surreply Brief** was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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